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Draft law for public discussion

Organic law of the Republic of Belarus on the government of the Republic of Belarus

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Organic law of the Republic of Belarus on the government of the Republic of Belarus

This Law determines the organizational structure, powers and operating procedures of the Government of the Republic of Belarus under and pursuant to the Constitution of the Republic of Belarus.

Chapter I. GENERAL PROVISIONS

Article 1. The place of the Government of the Republic of Belarus in the system of state bodies

1. The Government of the Republic of Belarus is the highest body of executive power in the Republic of Belarus.

Article 2. Powers of the Government of the Republic of Belarus

1. The powers of the Government are determined by the Constitution, this Law and other laws of the Republic of Belarus.

2. The government exercises its powers directly, as well as through the agency of Ministries and other executive authorities.

Article 3. Legal basis of activity of the Government of the Republic of Belarus

1. The Government of the Republic of Belarus is governed by the Constitution of the Republic of Belarus, international treaties, laws of the Republic of Belarus, and the Government Program when carrying out its activities.

2. In accordance with the Constitution of the Republic of Belarus and this Law, the Government of the Republic of Belarus shall approve the Rules of Procedure of the Government which determine the procedure for holding Government sessions, preparing and making decisions, dealing with other procedural issues related to Government activities, as well as determine the procedure for developing, implementing and monitoring the progress in implementing the programs of the Government of the Republic Belarus.

Article 4. Main operating principles of the Government of the Republic of Belarus

1. Collegiality, legality and transparency are the fundamental operating principles of the Government of the Republic of Belarus.

Article 5. Collegiality

1. The Government of the Republic of Belarus shall make decisions at the Government sessions.

Article 6. Legality

1. Acts of the Government of the Republic of Belarus shall conform to the Constitution of the Republic of Belarus, this Law and other laws of the Republic of Belarus.

Article 7. Transparency

1. The Government of the Republic of Belarus and individual ministers shall inform the public about their activities on the websites of the Government of the Republic of Belarus and relevant ministries, social media platforms, other media, or at the meetings with the people in the manner prescribed by the Government of the Republic of Belarus.

Article 8. Responsibility and accountability of the Government

1. The Government is jointly responsible to the Soym for its activities. The Government shall submit activity reports to the Soym at least once a year.

2. At the request of the Soym, the Government or individual ministers shall report to the Soym on the results of their activity in the manner prescribed by the Statute of the Soym.

3. Ministers are responsible to the Soym and shall report directly to the Prime Minister, when managing the areas of activities falling within their competence.

Article 9. Seat of the Government of the Republic of Belarus

1. The Government of the Republic of Belarus is located in the capital of the Republic of Belarus – the city of Minsk.

Chapter II. COMPOSITION AND PROCEDURE FOR FORMING THE GOVERNMENT OF THE REPUBLIC OF BELARUS

Article 10. Composition of the Government of the Republic of Belarus and legal status of its members

1. The Government of the Republic of Belarus is composed of the Prime Minister, his deputies and ministers.

2. The official composition of the Government of the Republic of Belarus (the number and list of governmental posts) shall be determined by the Prime Minister of the Republic of Belarus.

3. The posts of members of the Government of Belarus are classified as political posts that do not come within the purview of civil service and labor legislation.

4. The legal status of members of the Government of the Republic of Belarus shall be determined by the Constitution of the Republic of Belarus, this Law and other laws of the Republic of Belarus.

Article 11. Requirements for members of the Government of the Republic of Belarus

1. Citizens of the Republic of Belarus that have the right to vote, obtained higher education and can speak official language may be appointed to the posts of members of the Government of Belarus.

Persons with outstanding convictions or those that haven't expunged their convictions in the manner required by law, or those that were subjected to administrative penalties for committing acts of corruption may not be appointed to the posts of members of the Government of the Republic of Belarus.

2. Members of the Government of the Republic of Belarus may not combine their official activities with any other types of activity.

3. Members of the Government of the Republic of Belarus shall be subject to requirements and restrictions established by the Law of the Republic of Belarus.

Members of the Government of the Republic of Belarus shall undergo background checks upon their written consent in the manner prescribed by the Law of the Republic of Belarus.

Article 12. Appointment of the Prime Minister of the Republic of Belarus

1. The Prime Minister of the Republic of Belarus shall be appointed by the Soym on the proposal of the President of the Republic of Belarus.

2. Candidate for the post of Prime Minister of the Republic of Belarus proposed by a parliamentary faction or a coalition of factions holding the largest number of seats in parliament shall be submitted to the Soym by the President of the Republic of Belarus after consultation with the leaders of parliamentary factions within one month from the date of resignation of previous Prime Minister of Belarus.

The decision to confirm the Prime Minister in office shall be adopted by the Soym no later than within two weeks after the date of submission of candidate by the President of the Republic of Belarus.

3. If a candidate for the post of Prime Minister of the Republic of Belarus submitted by the President of Belarus fails to win the support of members of the Soym, the President shall propose the same candidate or a new candidate within a period of seven days, following which the Soym shall vote on the proposal to confirm the Prime Minister in office within seven calendar days.

A new candidate for the post of Prime Minister of the Republic of Belarus shall be proposed to the President of Belarus by a parliamentary faction or a coalition of factions holding the largest number of seats in parliament. The President shall submit a new candidate for the post of Prime Minister to the Soym after consultations with the leaders of parliamentary factions.

4. If a candidate for the post of Prime Minister of the Republic of Belarus submitted by the President fails to win the support of the Soym for the second time or the President fails to submit a candidate for the post of Prime Minister within the time limit specified in items 2 and 3 of this article, the right to submit a candidate for the post of Prime Minister shall be transferred to the Soym.

5. If the Soym members fail to appoint the Prime Minister of Belarus within two weeks after the date of transfer of the right to submit a candidate for the post of Prime Minister to the Soym, the President of Belarus must either appoint the Prime Minister from among the candidates receiving the highest number of votes in the Soym or call an early election to the Soym. The President of Belarus shall make a decision on this issue after official consultations with the Presidium of the Soym but no later than one month after the date of transfer of the right to submit a candidate for the post of Prime Minister to the Soym.

6. Candidate for the post of Prime Minister of Belarus shall propose the candidates for the posts of his deputies and ministers together with the draft Action Program of the Government for consideration by the Soym.

7. The Soym shall hold a roll-call vote on the issue of appointment of Prime Minister of the Republic of Belarus.

The decision to appoint the Prime Minister of the Republic of Belarus shall be adopted by the vote of a majority of the constitutional composition of the Soym.

The decision to appoint the Prime Minister of the Republic of Belarus shall be made in the form of a resolution of the Soym.

8. The person appointed to the post of Prime Minister of Belarus shall enter office in the manner specified in article 14 of this Law.

Article 13. Appointment of members of the Government of the Republic of Belarus

1. Members of the Government of the Republic of Belarus (other than the Prime Minister) shall be appointed by the Prime Minister of the Republic of Belarus no later than within fifteen days after the date of appointment of the Prime Minister.

Article 14. Entry of cabinet members into office and commencement of work of the newly formed Government of the Republic of Belarus

1. On the day of his appointment, the Prime Minister of the Republic of Belarus shall take the Oath of member of the Government of the Republic of Belarus at the session of the Soym before entering office. The text of the Oath reads as follows:

“Being aware of the high responsibility of a member of the Government of the Republic of Belarus, I solemnly swear my allegiance to the people of the Republic of Belarus. I pledge myself to observe the Constitution and the laws of the Republic of Belarus, strengthen the sovereignty and independence of the Republic of Belarus, defend the rights and liberties of an individual and a citizen, display concern about the well-being of the people of Belarus and sustainable development of democratic society”.

After taking the Oath, the Prime Minister of the Republic of Belarus shall sign the text of the Oath.

2. The Prime Minister shall read out the text of the oath of a member of the Government of the Republic of Belarus at the first session of the Government, following which the text of the Oath shall be signed by Prime Minister's deputies and ministers.

3. A member of the Government of the Republic of Belarus shall be deemed to have entered office from the moment of taking the oath of a member of the Government. The text of the Oath signed by a member of the Government shall be stored in his personal file.

4. A person that hasn't taken the Oath of a member of the Government of the Republic of Belarus and hasn't signed the text of the Oath is deemed to have refused an appointment.

5. The Government of the Republic of Belarus shall acquire powers and commence work as soon as the Oath of a member of the Government has been taken by no less than two-thirds of its official composition as defined in item 2 of article 10 of this Law.

6. On the day of his appointment, a member of the current Government of the Republic of Belarus shall take the Oath in person at the session of the Government and sign the text of the Oath right afterwards.

Article 15. Action Program of the Government of the Republic of Belarus

1. Action Program of the Government of the Republic of Belarus shall be based on the concerted political positions and program objectives of the parliamentary faction or a coalition of factions holding the largest number of seats in the Soym.

2. The Prime Minister of the Republic of Belarus shall submit the Action Program of the Government for consideration and approval by the Soym within one month from the date of appointment of the Prime Minister.

3. The decision to approve the Action Program of the Government of the Republic of Belarus shall be adopted by the vote of a majority of the constitutional composition of the Soym. The decision to approve the Action Program of the Government shall be made in the form of a resolution of the Soym.

4. The Soym may decide to give the Government an opportunity to improve the Action Program. The improved version of Action Program of the Government shall be reconsidered by the Soym no later than within fifteen days after making such a decision.

Chapter III. GIVING OVER OF POWERS AND RESIGNATION OF THE GOVERNMENT OF THE REPUBLIC OF BELARUS

Article 16. Giving over of powers of the Government of Belarus due to election of a new Soym

1. The Government of the Republic of Belarus shall give over its powers before the newly elected Soym.

2. Prime Minister of the Republic of Belarus or a person acting as the Prime Minister shall submit Government's resignation letter that shall be read out at the first plenary session of the newly elected Soym.

Article 17. Resignation of the Government of the Republic of Belarus

1. Resignation of the Government of the Republic of Belarus occurs due to the following reasons:

1) members of the Soym pass a no-confidence motion against the Government;

2) resignation of Prime Minister;

3) death of Prime Minister.

Article 18. Resignation of the Government of the Republic of Belarus due to a no-confidence motion passed by the Soym

1. The Prime Minister may bring up the question of confidence in the Government and submit it for consideration by the Soym. The question of confidence may be put to the vote no earlier than seven days and no later than fourteen days after the date of submission for consideration. The Soym shall pass a vote of confidence by the vote of a majority of its constitutional composition.

If the Soym turns down a vote of confidence in the Government of the Republic of Belarus, the Government shall give over its powers and shall continue to perform its duties until a new Prime Minister is appointed. In this case, a new Prime Minister must be appointed by the vote of a majority of constitutional composition of the Soym within two weeks, otherwise item 5 of article 102 of the Constitution shall come into effect.

2. Members of the Soym comprising at least one-fourth of its constitutional composition have the right to submit a motion of no-confidence in the Government. Initiators of no-confidence motion shall also submit a candidate for the post of Prime Minister, following which the proposed candidate for the post of Prime Minister shall present the members and Action Program of a new Government for consideration by the Soym. A motion of no-confidence in the Government shall be deemed to have been passed, if the Soym appoints a new Prime Minister by the vote of a majority of its constitutional composition no earlier than seven days and no later than fourteen days after the date of submission of a no-confidence motion.

3. The powers of the Government of the Republic of Belarus shall be deemed terminated from the moment of appointment of a new Prime Minister.

4. A motion of confidence or no-confidence in the Government of the Republic of Belarus may be resubmitted for consideration by the Soym no earlier than six months after the date of submission of previous motion.

5. The Soym may not hold a vote on a motion of no-confidence in the Government in the first three months after the appointment of the Prime Minister and in the last six months of the term of powers of the Soym.

Article 19. Resignation of the Government of the Republic of Belarus due to resignation of Prime Minister

1. The Government as a whole or any individual member of the Government shall have the right to announce resignation, if they find it impossible to perform their duties.

2. The Soym shall consider the issue of resignation of the Prime Minister no later than within ten days after the date of receipt of resignation letter, if it was received during the regular session of the Soym, or in the first plenary week of the next regular session at the latest, if the resignation letter was received during the intersessional period.

3. The Prime Minister is deemed to have been dismissed from office from the day of adoption of decision on his resignation at the plenary session of the Soym.

4. Resignation of the Prime Minister leads to resignation of the Government as a whole.

Article 20. Resignation of the Government of the Republic of Belarus due to death of Prime Minister

1. The powers of the Prime Minister shall be terminated immediately upon his death duly confirmed by certificate of death.

2. Termination of powers of the Prime Minister due to his death leads to resignation of the Government as a whole.

Article 21. Extension of the term of powers of the Government as a whole and individual members of the Government

1. The Government that gave over its powers before the newly elected Soym or resigned on the grounds specified in article ... of this Law shall continue to perform its duties until the commencement of work of the newly formed Government.

2. In the event of voluntary resignation or death or long-term disability of the Prime Minister, the President shall appoint an interim Prime Minister, and the Government shall continue to exercise its powers on a temporary basis until the appointment of a new Prime Minister in accordance with article 102 of the Constitution.

3. If a member of the Government is elected to the new convocation of the Soym, he will get the mandate of Soym deputy in the manner prescribed by law, in which case there will be no decision taken on his dismissal from office and he will continue to exercise the powers of a member of the Government until the commencement of work of the newly formed Government of the Republic of Belarus.

Article 22. Dismissal of a member of the Government of the Republic of Belarus

1. The Soym may dismiss a member of the Government (other than the Prime Minister) from office:

1) by way of accepting the resignation of a member of the Government upon receipt of his resignation letter;

2) on its own initiative.

2. The decision of the Soym on the dismissal of a member of the Government shall be made in the form of a resolution of the Soym.

3. A member of the Government is deemed to have been dismissed from office from the day of adoption of relevant decision by the Soym.

4. In the event of the death of a member of the Government, the powers of deceased member are deemed to have been terminated from the date of his death duly confirmed by certificate of death.

5. An individual shall be appointed to the vacant post of a member of the Government in the manner prescribed by this Law and shall be deemed to have entered office from the moment of taking the oath in accordance with ... of this Law.

6. All members of the Government that gave over its powers before the newly elected Soym or those members that resigned shall be dismissed from their posts as soon as the newly formed Government has commenced work.

Chapter IV. SCOPE OF COMPETENCE OF THE GOVERNMENT OF THE REPUBLIC OF BELARUS

Article 23. General powers of the Government of the Republic of Belarus

The Government of the Republic of Belarus shall:

ensure the implementation of the Constitution of the Republic of Belarus, international treaties, laws and intergovernmental agreements;

develop focal points of domestic and foreign policy of the Republic of Belarus and take measures to ensure implementation thereof;

draw up a state budget draft and present it for consideration by the Soym, facilitate the implementation of the state budget;

ensure the implementation of a uniform economic, financial, credit and monetary policy, state policy in the field of science and innovations, culture, education, healthcare, physical culture, sports and tourism, ecology, social security and labor remuneration, public-private partnership, prevention of natural and man-made disasters, disaster recovery, digital development, investments, concessions and other spheres;

develop and ensure the implementation of national programs for economic, scientific, technical, social, cultural development, environmental protection, and other state targeted programs;

arrange administration of ministries and other organizations accountable to the Government of the Republic of Belarus;

carry out administrative oversight over the legality of activities of local government bodies within the scope and in the manner prescribed by the Constitution and laws of Belarus;

take measures to defend the rights and liberties of citizens, protect the interests of the state, ensure national security and defense capability, enforce public order, combat crime and corruption;

provide equal conditions for the development of all forms of ownership; act on behalf of the owner in relation to state property of the Republic of Belarus and arrange property management as provided for by the law;

establish, reorganize and liquidate legal entities whose property is in state ownership;

in the event of an epidemic, natural or man-made disaster, or civil unrest accompanied by acts of violence committed by a group of individuals or organizations, in which case the state bodies are unable to carry out their duties in a proper manner, impose a state of emergency on the whole territory or in certain regions of the Republic of Belarus for a period of not more than 90 days with the introduction of adopted decision for consideration by the Soym within two days of imposing a state of emergency.

The Government of the Republic of Belarus shall exercise other powers conferred by the Constitution and laws of the Republic of Belarus.

Article 24. Scope of powers of the Council of Ministers of the Republic of Belarus in the economic sector

In the economic sector, the Government of the Republic of Belarus shall:

develop and ensure implementation of economic development program;

administer state property, including corporate rights, in accordance with the law;

facilitate the development of entrepreneurship, promotion of competition and development of market infrastructure, implement measures for demonopolization and antimonopoly regulation of the economy;

ensure the implementation of a uniform state policy in the field of public procurement, establish the procedure for purchasing goods (works, services) at its own cost and at the expense of organizations to whom this procedure applies;

ensure the implementation of regulatory policy of the state in the field of economic activity;

Article 25. Scope of powers of the Government of the Republic of Belarus in the financial sector

In the financial sector, the Government of the Republic of Belarus shall:

draft the bills on state budget, submit these bills and budget implementation reports for consideration and approval by the Soym on an annual basis;

ensure the implementation of state budget;

draft the bills on the budgets of state extra-budgetary funds for the next financial year on an annual basis, submit these bills and annual reports on implementation of the budgets of state extra-budgetary funds for consideration and approval by the Soym;

carry out regulation of the internal and external public debt of the Republic of Belarus within the scope and in the manner prescribed by the Constitution and applicable law;

facilitate the attraction, use and repayment of external government loans (credits) forming the external public debt of the Republic of Belarus;

act on behalf of the Republic of Belarus when providing state guarantees of the Republic of Belarus.

Article 26. Scope of powers of the Government of the Republic of Belarus in the field of scientific, technological and innovative activities, intellectual property and education

In the field of scientific, technological and innovative activities, intellectual property and education, the Government of the Republic of Belarus shall:

ensure the implementation of scientific and technical policy, development and strengthening of scientific and technological capacity of the Republic of Belarus, development and implementation of national scientific and technological programs;

establish the procedure for forming and using the funds to support scientific and technological activities;

take measures to improve state regulation of scientific and technological activities;

take measures aimed at ensuring the protection and enforcement of intellectual property rights;

take measures to stimulate innovative activities of enterprises, institutions and organizations;

develop and carry out key measures necessary for implementation of state policy in the field of education.

Article 27. Scope of powers of the Government of the Republic of Belarus in the field of healthcare, tourism, sports and culture

In the field of healthcare, culture, sports and tourism, the Government of the Republic of Belarus shall:

facilitate the implementation of state policy in the field of healthcare, sanitary and epidemiological welfare, ensure access to services provided by sports, medical and recreational institutions for all citizens;

facilitate the implementation of state policy in the field of culture, protection of historical and cultural heritage, ensure comprehensive development and functioning of official state language in all spheres of public life throughout the Republic of Belarus;

create conditions for the free development of languages of national minorities living in the Republic of Belarus, contribute to meeting the national and cultural needs of Belarusians living outside the Republic of Belarus;

ensure the development and implementation of measures aimed at establishing material-technical basis and creating other conditions necessary for the development of healthcare, culture, sports and tourism.

Article 28. Scope of powers of the Government of the Republic of Belarus in the field of employment, labor safety, social protection, demographic security

In the field of employment, labor safety, social protection and demographic security, the Government of the Republic of Belarus shall:

take measures to facilitate the realization of citizens' right to labor;

act as one of the parties to social dialogue at the national level, contribute to promotion of social dialogue, hold consultations with other parties to social dialogue on draft laws and other legal acts concerning the development and implementation of social and economic policy of the state, regulation of labor, social and economic relations in accordance with the law;

work out and implement measures for rational distribution of productive forces and development of a national system of qualifications;

ensure the implementation of employment policy of the state, development and implementation of relevant state programs, deal with the issues of career guidance, training and retraining of personnel, regulate migration processes, ensure the implementation of provisions of General Agreement within the scope of its obligations;

organize the development and implementation of a set of measures aimed at improving labor safety and working conditions with due account for other focal points of economic and social policy, achievements of science and technology;

facilitate the implementation of social policy of the state, take measures to increase real incomes of the population and ensure social protection of citizens;

ensure the elaboration of draft laws on state social standards and social guarantees;

take measures to ensure social protection of citizens, improve the social protection system;

facilitate the development and implementation of public welfare programs, take measures to strengthen the material and technical basis of institutions that ensure social protection of people with disabilities, pensioners as well as other incapacitated and low-income groups of the population;

take measures aimed at ensuring social integration, creating an accessible environment and improving the quality of life of people with disabilities, supporting the families with disabled people;

develop and implement measures to improve the socio-economic living conditions of families with children;

take measures aimed at protecting motherhood, paternity and childhood, ensuring equal rights and opportunities for women and men;

develop measures to ensure demographic security and coordinate implementation of these measures.

Article 29. Scope of powers of the Government of the Republic of Belarus in the field of environmental protection

In the field of environmental protection, the Government of the Republic of Belarus shall:

take measures to facilitate the realization of citizens' right to a favorable environment;

ensure the implementation of state policy in the field of nature conservation, environmental safety and environmental management;

define measures for environmental protection, science-based use of natural resources and improvement of environmental quality;

ensure the development and implementation of state and interstate environmental programs;

carry out public administration in the field of protection and rational use of land, subsoil, water resources, flora and fauna, and other natural resources of Belarus within the scope of its powers;

establish the procedure for maintaining the National Environmental Monitoring System of the Republic of Belarus, define the procedure for conducting monitoring and using monitoring data;

make decisions regarding restriction, temporary ban (suspension) or termination of operations and activities of enterprises, institutions and organizations of all forms of ownership, if they violate the law on labor and environmental protection;

coordinate the activities of executive authorities with regard to environmental protection, implementation of regional, state and interstate environmental programs, as well as exercise administrative oversight over the legality ...;

ensure the implementation of measures specified in the state programs for the liquidation of the consequences of Chernobyl disaster, make decisions regarding liquidation of the consequences of other accidents, wildfires, catastrophes and natural disasters;

declare certain areas of the territory of the Republic of Belarus as zones of environmental risk and zones of environmental crisis;

facilitate the development of environmental culture, ensure training and retraining of specialists to carry out activities in the field of environmental protection;

carry out state regulation in the field of hydrometeorological activities.

Article 30. Scope of powers of the Government of the Republic of Belarus in the field of implementing the legal policy, law enforcement, safeguarding the rights and liberties of an individual and a citizen

In the field of enforcing the law and public order, the Government of the Republic of Belarus shall:

facilitate the implementation of legal policy of the state;

take measures to **ensure** and defend the rights and liberties of an individual and a citizen, protect their dignity, life and health from illegal tampering, protect the property and public order, ensure fire security, fight crime, prevent and combat corruption;

direct the actions of subordinate bodies of state administration and other organizations in the field of legal education of citizens and crime prevention;

have the right to call upon the Constitutional Court to give an opinion on the compliance of regulatory legal acts and international treaties with the Constitution of the Republic of Belarus;

provide financial, logistical and technical support for the activities of law enforcement agencies, ensure social protection of employees of these agencies and members of their families;

create conditions for the free development and functioning of the system of legal services and legal assistance to the population;

carry out measures to ensure the functioning of the free legal aid system.

Article 31. Scope of powers of the Government of the Republic of Belarus in the field of ensuring national security and defense capability

In the field of ensuring national security and defense capability, the Government of the Republic of Belarus shall:

take measures to ensure national security and defense capability, defend the independence and territorial integrity of the Republic of Belarus;

exercise control over the implementation of national arms program;

organize the development and placement of state defense order, provide the Armed Forces of the Republic of Belarus, military formations and paramilitary organizations with weapons, military equipment and other material assets and resources as per their orders, deal with the issues of construction and deployment of defense facilities on the territory of the Republic of Belarus;

determine the volume of material assets and the amount of budget funds allocated for defensive needs, including the implementation of national arms program, defense research and engineering, facilitate the creation and maintenance of state and mobilization reserves, manage the process of mobilization preparation;

manage the process of preparation of Belarusian citizens for military service and conscription into the armed forces, ensure the creation of well-trained military reserve;

carry out management of civil defense of the Republic of Belarus;

facilitate the participation of Belarusian military personnel in international peace and security support operations in the manner prescribed by law;

provide social and legal guarantees to military personnel, persons discharged from military service and members of their families.

Article 32. Scope of powers of the Government of the Republic of Belarus in the field of domestic and foreign policy of Belarus

In the field of implementing the foreign policy of Belarus, the Government of the Republic of Belarus shall:

coordinate activities of the Republic of Belarus in relationships with foreign countries, international organizations and interstate entities;

conclude international treaties and participate in the preparation and adoption of other international legal acts that impose obligations on the Republic of Belarus within the scope of its competence;

take measures to ensure the implementation of international treaties and other international legal acts having a binding effect on the Republic of Belarus;

make decisions regarding the acquisition of real estate abroad (construction, reconstruction of facilities) to satisfy the needs of foreign diplomatic institutions of the Republic of Belarus.

Article 33. Scope of powers of the Council of Ministers of the Republic of Belarus in the field of improving the quality of public administration and civil service:

In the field of improving the quality of public administration and civil service, the Government of the Republic of Belarus shall:

carry out measures to ensure adequate staffing of executive authorities;

develop and implement measures aimed at improving the system of executive authorities in order to increase the efficiency of their activities, optimize the costs associated with the maintenance of the administrative apparatus;

approve the maximum allowed number of employees of executive authorities;

facilitate the implementation of a uniform state policy in the field of civil service;

establish, reorganize and liquidate ministries and other central executive authorities in accordance with the law and within the limits of state budget funds allocated for the maintenance of executive bodies, adopt the charters of the aforesaid executive bodies;

Chapter V. SCOPE OF POWERS OF THE GOVERNMENT OF THE REPUBLIC OF BELARUS IN RELATIONSHIPS WITH EXECUTIVE AUTHORITIES

Article 34. Scope of powers of the Government of the Republic of Belarus in relationships with the ministries and other central executive authorities

1. The Government of the Republic of Belarus shall direct and coordinate the activities of ministries and other central executive authorities that ensure the implementation of state policy in relevant spheres of public life, compliance with the Constitution and laws of the Republic of Belarus, acts of the President of the Republic of Belarus, observance of rights and freedoms of an individual and a citizen.

2. Ministries and other central executive authorities shall be responsible and accountable to the Government of the Republic of Belarus, and they shall be under Government control.

3. Ministers shall report on the activities of relevant ministries to the Government of the Republic of Belarus.

Ministers shall be accountable and responsible to the Prime Minister and - within the scope of joint responsibility of the Government - to the Soym.

4. Ministers shall direct and coordinate the activities of central executive authorities, provided that the heads of such authorities are not members of the Government of the Republic of Belarus. Relevant ministers shall report on the activities of central executive authorities that are directed and coordinated by them.

5. The Government of the Republic of Belarus shall approve the maximum allowed number of employees of ministries and other central executive authorities within the limits of state budget funds allocated for the maintenance of executive authorities.

The Government of the Republic of Belarus shall determine the number of deputy heads of central executive body upon receipt of a reasonable request from the head of such body whose activities are directed and coordinated by the Government.

6. The Government of the Republic of Belarus may annul the acts of ministries and other central executive authorities in whole or in part.

7. The Government of the Republic of Belarus shall appoint:

1) state secretaries of ministries, heads and deputy heads of central executive authorities other than the members of the Government of the Republic of Belarus – on the proposal of the Commission on High Corps of Civil Service based on the results of a competition in accordance with the legislation on civil service;

2) first deputy ministers and deputy ministers – on the proposal of the Prime Minister of the Republic of Belarus.

The aforesaid persons shall be dismissed from their posts by the Government of the Republic of Belarus on the grounds provided for in the Labor Code and the laws of the Republic of Belarus “On central executive authorities”, “On civil service”.

8. Special aspects of relations between the Government and certain central executive authorities may be determined by the laws of the Republic of Belarus.

Article 35. Scope of powers of the Government of the Republic of Belarus in relationships with consolidated state companies, enterprises, institutions and organizations

1. The Government of the Republic of Belarus may establish, reorganize and liquidate consolidated state companies, enterprises, institutions and organizations, including for the purpose of performing certain functions related to management of state property, within the limits of allocated budget funds and in accordance with the law. The Government of the Republic of Belarus shall adopt the regulations and charters of consolidated state companies, enterprises, institutions and organizations, approve the amount of allocations for their maintenance and the maximum allowed number of employees, appoint and dismiss their directors and deputy directors, and take disciplinary action against them.

2. The Government of the Republic of Belarus shall determine the methodology for approving financial plans of consolidated state companies, enterprises, institutions and organizations, and the methodology for calculating the amounts of budget revenues from management of state corporate rights.

3. The Government of the Republic of Belarus shall coordinate and control the activities of the aforesaid consolidated state companies, enterprises, institutions and organizations in accordance with the law.

4. The directors of consolidated state companies, enterprises, institutions and organizations established by the Government are personally responsible to the Government for the performance of these consolidated companies, enterprises, institutions and organizations, and for the efficient use of state property.

Chapter VI. SCOPE OF POWERS OF THE GOVERNMENT OF THE REPUBLIC OF BELARUS IN RELATIONSHIPS WITH THE PRESIDENT OF BELARUS

Legal basis of relations between the Council of Ministers and the President of Belarus

Article 36. Countersigning of acts of the President of Belarus

1. Acts of the President of the Republic of Belarus are subject to counter-signature by the Prime Minister of the Republic of Belarus in cases provided for in the Constitution, the Law “On the President of the Republic of Belarus”, and this Law.

2. The Prime Minister of the Republic of Belarus has the right to refuse to countersign the act of the President of Belarus on the condition that he provides a reasoned refusal in writing within 3 days of the date of receipt of the act of the President.

3. If an act of the President of Belarus is initiated by the Prime Minister of the Republic of Belarus, the President shall be obliged to sign or refuse to sign it by providing a reasoned refusal in writing within 3 days of the date of receipt of the draft act.

Article 37. The procedure for exercising the powers of the President upon the recommendation of the Government of the Republic of Belarus

1. Upon recommendation of the Government, the President shall:

appoint and recall diplomatic representatives of Belarus in foreign countries and international organizations; accept credentials and recall letters from diplomatic representatives of foreign countries and international organizations; confer the highest diplomatic ranks and special titles;

appoint and dismiss the high command of the Armed Forces;

appoint other officials specified in the law;

confer the highest military ranks;

bestow class ranks and titles.

2. The Government recommendation specified in item 1 of this article shall be submitted by the Prime Minister of the Republic of Belarus on the basis of a protocol decision adopted at the Government session.

3. The President of the Republic of Belarus has the right to refuse to implement the Government recommendation only in cases where such a recommendation was submitted and accepted in violation of the procedure established by this Law and other laws.

Article 38. The procedure for exercising joint powers of the Government and the President of the Republic of Belarus

1. The Government jointly with the President of the Republic of Belarus shall take measures to defend the sovereignty, national security and territorial integrity of the Republic of Belarus.

These powers shall be exercised by way of holding discussions on the aforesaid issues at the meetings of the Security Council and adopting the acts that are subject to approval by the Government and the President of Belarus in the manner prescribed by the Law on the Security Council of the Republic of Belarus.

2. The Government jointly with the President of the Republic of Belarus shall make decisions on foreign policy issues.

For this purpose, the Government and the President of the Republic of Belarus shall appoint a Commission on Foreign Policy Issues on a parity basis. The Commission may be composed of members of the Government, employees of the Presidential Office,

republican ministries, agencies and departments, members of the Soym, experts, scientists and scientific-pedagogical workers conducting research in the field of foreign policy. The Minister of Foreign Affairs of the Republic of Belarus is the obligatory ex-officio member that directs the activities of the Commission on Foreign Policy Issues.

The decisions of the Commission on Foreign Policy Issues shall be made in the form of recommendations that are subject to mandatory consideration by the Government and the President of the Republic of Belarus.

The procedure for organizing the work of the Commission on Foreign Policy Issues is specified in this Law and in the Charter of the Commission that shall be adopted by the Government and the President of the Republic of Belarus.

The President of the Republic of Belarus shall sign international treaties of the Republic of Belarus exclusively on the basis of positive recommendations of the Commission on Foreign Policy Issues that are subject to approval by the Government.

3. The Government jointly with the President of the Republic of Belarus shall make decisions on the reception of foreigners into the citizenship of the Republic of Belarus and termination of Belarusian citizenship.

The President of the Republic of Belarus shall make decisions to grant and terminate Belarusian citizenship upon the recommendations of the Citizenship Commission appointed by the President and the Government of the Republic of Belarus on a parity basis. The Citizenship Commission shall be headed by one of its members that was appointed within the quota of the President.

The Charter of the Citizenship Commission that establishes the procedure for organizing its activities shall be adopted by the President of the Republic of Belarus.

Chapter VII. SCOPE OF POWERS OF THE GOVERNMENT OF THE REPUBLIC OF BELARUS IN RELATIONSHIPS WITH THE SOYM, STATE BODIES ESTABLISHED BY THE SOYM, AND MEMBERS OF THE SOYM

Article 39. Relations between the Government and the Soym of the Republic of Belarus

1. The Government of the Republic of Belarus has the right of legislative initiative and organizes the development of draft laws at its own instance as well as in cases provided for in applicable legislation.

2. The Government of the Republic of Belarus drafts the bills on republican budget and budget implementation reports, and submits them for consideration and approval by the Soym.

3. The Government of the Republic of Belarus drafts the bills on the budgets of state extra-budgetary funds for the next financial year, and submits these bills and annual

reports on implementation of budgets of state extra-budgetary funds for consideration and approval by the Soym.

4. The Government of the Republic of Belarus shall deliver an opinion on the bills submitted for consideration by the Soym in cases where the adoption of such bills may lead to a decrease in public funds or an increase in public expenditure or incurring thereof.

5. Members of the Government of the Republic of Belarus have the right to deliver opinions on the bills proposed by individual members (deputies) of the Soym or the Permanent Commissions of the Soym within the scope of their competence. Such opinions shall be submitted for consideration by the Permanent Commission that was put in charge of the process of development of the corresponding bill.

7. The Government of the Republic of Belarus has the right to demand that the Soym should make a decision on Government bill at the plenary session by holding a vote on the bill in whole or in part, in which case only those amendments that were proposed or adopted by the Government shall be kept intact.

8. The Government of the Republic of Belarus shall submit documents and other materials related to Government activities for consideration by the Soym and subordinate bodies upon their request or at Government's own initiative in the manner prescribed by law.

9. The Government of the Republic of Belarus shall arrange consideration of applications and requests for information about Government activities submitted by parliamentary commissions and individual members of the Soym by way of interpellation. The Prime Minister or other member of the Government, to whom the application is addressed, shall give a response in writing or in the form of a speech at the Soym session followed by a discussion.

Article 40. Relations between the Government and the Human-rights Ombudsman of the Republic of Belarus

1. The Government of the Republic of Belarus provides Human Rights Ombudsman with access to acts and other documents of the Government, subordinate bodies, enterprises, institutions and organizations to the extent permitted by applicable law, and assists Human Rights Ombudsman in exercising his statutory powers.

2. The Government of the Republic of Belarus shall take appropriate measures to eliminate violations of human rights within the scope of its competence, if the request submitted by Human Rights Ombudsman gives reasonable grounds for believing that the human rights were violated. The Government shall inform the Human Rights Ombudsman about measures taken.

Article 41. Relations between the Government and the Control and Auditing Chamber of the Republic of Belarus

1. At the request of the Control and Auditing Chamber, the Government of the Republic of Belarus shall provide statistical, financial, accounting data and other information

necessary for performing the tasks, functions and powers of the Control Chamber established by the Constitution and laws of the Republic of Belarus.

2. The Control and Auditing Chamber provides the Government with information on the results of inspections, audits and examinations, and submits proposals for bringing to justice the persons guilty of law violation, misuse and ineffective use of funds, causing material damage to state property. The Government gives consideration to provided information and proposals, takes appropriate measures within the scope of its competence, and informs the Control Chamber about measures taken.

Article 42. Relations between the Government and the Committee on Oversight of Security and Intelligence Services of the Republic of Belarus

1. Authorized members of the Government of Belarus shall provide the Committee on Oversight of Security and Intelligence Services with access to acts and other documents of the Government as well as documents of security and intelligence services subordinate to the Government to the extent permitted by applicable law. The Government shall assist the Committee in exercising its statutory powers.

2. The Committee on Oversight of Security and Intelligence Services shall submit proposals for improving the quality of work of security and intelligence agencies to the Government of the Republic of Belarus. The Government shall give consideration to proposals and inform the Committee about measures taken.

Article 43. Relations between the Government and the Committee on Ethics in Civil Service and Corruption Control

1. The Committee on Ethics in Civil Service and Corruption Control provides the Government with information on the results of inspections and submits proposals for bringing to justice the persons guilty of law violation as well as civil servants that committed corruption practices in subordinate governmental organizations. The Government gives consideration to provided information and proposals, takes appropriate measures within the scope of its competence, and informs the Committee on Ethics in Civil Service and Corruption Control about measures taken.

Chapter VIII. RELATIONS BETWEEN THE GOVERNMENT, OTHER STATE AUTHORITIES AND LOCAL SELF-GOVERNING BODIES OF BELARUS

Article 44. Relations between the Government and the Constitutional Court of the Republic of Belarus

1. The Government of the Republic of Belarus shall call upon the Constitutional Court to give an opinion:

on constitutionality of normative legal acts of the Republic of Belarus;

on constitutionality of international treaties.

The Government of the Republic of Belarus shall apply to the Constitutional Court in order to adjudicate disputes concerning the powers of relevant bodies.

2. A permanent representative of the Government of the Republic of Belarus shall represent the interests of the Government in the course of consideration of cases in the Constitutional Court.

Article 45. Relations between the Government and the judicial authorities of the Republic of Belarus

1. The Government may act as a plaintiff or a defendant in the courts. In particular, the Government may apply to the court, if deemed necessary for exercising its powers in the manner prescribed by the Constitution and the laws of the Republic of Belarus.

2. The Ministry of Justice of the Republic of Belarus shall represent the Government before the courts, unless otherwise provided by the laws of the Republic of Belarus or legal acts of the Government of Belarus.

3. At the request of the Government or the Ministry of Justice, executive authorities, state enterprises, institutions and organizations are obliged to provide information materials necessary for consideration of cases in the courts within the time limit prescribed by the Government or the Ministry of Justice.

4. The Government of the Republic of Belarus shall cooperate with the High Council of Justice and other judicial bodies and institutions on issues falling within their competence.

Article 46. Relations between the Government and the National Bank of the Republic of Belarus

1. The National Bank jointly with the Government of the Republic of Belarus shall ensure the implementation of a uniform monetary policy in Belarus.

2. The Government and the National Bank of the Republic of Belarus shall exchange information about proposed actions of national importance, coordinate their activities, and conduct mutual consultations on a regular basis.

Article 47. Relations between the Government and local self-governing bodies of Belarus

1. The Government of the Republic of Belarus shall direct the activities of executive authorities toward promoting development and effective functioning of local self-government, respecting the rights of local self-governing bodies established by law, facilitating cooperation between executive authorities and local self-governing bodies in resolving the issues of local significance, including economic, social and cultural development of the corresponding administrative-territorial units.

2. The Government of the Republic is obliged to familiarize local self-governing bodies with draft acts of the Government that have a direct bearing on the functioning of local self-government or the interests of territorial communities.

3. The Government of the Republic of Belarus shall reimburse the expenses incurred by local self-governing bodies as a result of the decisions made by the Government and other executive authorities at the expense of state budget funds allocated for this purpose and in the manner prescribed by law.

4. The Government may submit draft laws on the transfer of certain powers from executive authorities to local self-governing bodies for consideration by the Soym. At the same time, the Government shall submit proposals for financing the exercise of transferred powers in full at the expense of state budget funds or by way of diverting the proceeds from certain national taxes and duties into the local budget, transferring state property items to municipal ownership or assigning the use of state property to local self-governing bodies.

5. Within the scope of their powers, ministries and authorized representatives of the Government in the corresponding administrative-territorial units shall exercise oversight over the uniform implementation of normative legal acts by local self-governing bodies.

6. Ministries and authorized representatives of the Government exercise their powers in accordance with the law. They have no right to interfere in the affairs falling within the competence of local self-governing bodies.

7. If a decision made by local self-governing body violates the law, the ministries and authorized representatives of the Government shall either approach the local self-governing body with a proposal to annul an unlawful decision or apply to the court.

Chapter IX. ORGANIZATION OF ACTIVITIES OF THE GOVERNMENT OF THE REPUBLIC OF BELARUS

Article 48. Exercise of powers of the Government of the Republic of Belarus

1. Activities of the Government of the Republic of Belarus are aimed at ensuring observance of the Constitution and laws of Belarus, acts of the President of Belarus, resolutions of the Soym adopted in compliance with the Constitution and laws of Belarus, the Action Program of the Government of Belarus approved by the Soym.

2. In accordance with the Constitution and laws of the Republic of Belarus, the Government shall exercise its powers by way of adopting decisions at the Government sessions by a majority vote of its official composition as specified in article .... of this Law.

Article 49. Prime Minister of the Republic of Belarus

1. The Prime Minister of the Republic of Belarus shall:

1) administer the affairs of the Government, direct the activities of the Government toward ensuring the implementation of domestic and foreign policies of the state, realization of Action Program of the Government approved by the Soym, and the exercise of other powers conferred on the Government;

2) direct, coordinate and control the activities of members of the Government, the heads of central executive authorities, local state administrations, and for this purpose, give directions that have a binding effect on the aforesaid bodies and officials;

3) appoint members of the Government (other than the Minister of Foreign Affairs and the Minister of Defense of the Republic of Belarus), submit proposals on appointment of the Chairman of the Antimonopoly Committee, the Chairman of the State Committee on Television and Radio Broadcasting and the Chairman of the State Property Fund of the Republic of Belarus for consideration and approval by the Soym;

4) submit the following proposals for consideration by the Government of the Republic of Belarus:

proposals on appointment and dismissal of the heads of local state administrations;

proposals for directing and coordinating the activities of central executive authorities through the efforts of the Government, in particular, through the efforts of ministers other than the heads of ministries;

proposals on appointment of candidates to official positions based on the results of competitive selection in compliance with the law on civil service, as well as proposals on dismissal of members of collegial central executive bodies that are not part of the Government of the Republic of Belarus;

proposals on establishment, reorganization and liquidation of ministries and other central executive authorities;

5) draft an agenda of the session of the Government of the Republic of Belarus;

6) convene and chair the Government sessions;

7) sign the General Agreement and the acts of the Government of the Republic of Belarus;

8) affix a countersignature to the acts of the President in compliance with item 3 of article 97 of the Constitution of the Republic of Belarus.

9) represent the Government in relations with other state bodies, enterprises, institutions and organizations in Belarus and abroad;

10) enter into relations with the governments of foreign countries, negotiate and sign international treaties in compliance with the law, resolutions of the Soym and the acts of the President of the Republic of Belarus adopted in accordance with the Constitution and the decisions of the Council on Foreign Policy of Belarus;

11) submit proposals on appointment of the chairmen of joint intergovernmental coordination commissions, which were formed on the basis of international treaties concluded on behalf of the Government, for consideration and approval by the Government of the Republic of Belarus;

12) give instructions to open disciplinary proceedings against the ministers and deputy ministers, heads and deputy heads of other central executive authorities. Take disciplinary measures against the aforesaid persons;

13) give instructions to open disciplinary proceedings against the heads and deputy heads of local executive authorities.

2. The Prime Minister of the Republic of Belarus may exercise other powers provided for in the Constitution, this Law and other laws of the Republic of Belarus.

3. The Office of the Prime Minister of the Republic of Belarus shall be established as part of the Secretariat of the Government in order to assist the Prime Minister in exercising his powers. The head of the Office shall be appointed and dismissed by the Prime Minister of the Republic of Belarus.

4. In the absence of the Prime Minister of the Republic of Belarus, the Deputy Prime Minister shall exercise the powers and authority of the Prime Minister on his behalf in accordance with the distribution of powers established by the Government of Belarus.

Article 50. Deputy Prime Minister of the Republic of Belarus

1. Within the scope of competence determined by the Prime Minister of the Republic of Belarus, Deputy Prime Minister shall:

1) facilitate the implementation of Action Program of the Government, ensure the execution of other tasks and powers assigned to the Government in the corresponding areas of activity;

2) prepare a list of issues for consideration at the sessions of the Government of Belarus, pre-review and coordinate the approval of the bills and acts of the President that were prepared by the Government, and the draft versions of corresponding acts of the Government, contribute to alignment of positions upheld by members of the Government, submit proposals concerning the agenda of the Government sessions;

3) facilitate cooperation between the Government, the President and the Soym on issues related to the activities of the Government and other executive authorities;

4) participate in the process of consideration of issues at the sessions of the Government of the Republic of Belarus, exercise the right to attend the sessions of the Soym and subordinate bodies, participate in the activities of collegiums of ministries and other central executive authorities;

5) upon Government decision, Deputy Prime Minister shall administer the affairs of consultative, advisory and other auxiliary bodies established by the Cabinet of Belarus;

6) represent the Government of the Republic of Belarus in relations with other state bodies, enterprises, institutions and organizations in Belarus and abroad in the prescribed manner;

7) negotiate and sign international treaties on behalf of the Republic of Belarus within the scope of powers conferred on him;

8) exercise other powers as provided for in this Law and other laws of Belarus.

Article 51. The minister of the Republic of Belarus – member of the Government of Belarus

1. The minister of the Republic of Belarus shall:

1) ensure the implementation of the Action Program of the Government of Belarus, development and implementation of state policy, execution of other tasks and powers conferred on the Government in the corresponding area of activities;

2) direct and coordinate the activities of relevant central executive authorities;

3) submit the following proposals for consideration by the Government of the Republic of Belarus:

proposals for resolving the issues related to the exercise of his powers when it comes to directing and coordinating the activities of central executive authorities;

proposals on appointment of the head of territorial body of relevant ministry or the head of other central executive authority whose activities are directed and coordinated by the minister, or the head of government body forming part of the ministerial system, or the head of an enterprise, institution, organization administered by relevant ministry or other central executive authority, if the head of oblast state administration gives a reasoned refusal (or supports the decision of the head of rayon state administration to give a reasoned refusal) to approve the appointment of the aforesaid heads;

4) submit proposals on appointment and dismissal of the first deputy minister and deputy ministers for consideration and approval by the Prime Minister;

6) coordinate the approval of the bills and the acts of the President and the Government of Belarus submitted for consideration by the Government insofar as they relate to activities falling within the competence of the ministry or central executive authorities whose activities are directed and coordinated by the minister;

7) submit the bills and the acts of the President and the Government, which were drafted by the ministry or central executive authorities whose activities are directed and coordinated by the minister, for consideration and approval by the Government of Belarus;

8) issue binding orders and instructions on the questions falling within the competence of the ministry and central executive authorities whose activities are directed and coordinated by the minister

9) prepare a list of issues for consideration by the Government of the Republic of Belarus;

10) participate in the process of consideration of issues at the Government sessions and make proposals on inclusion of additional items in the agenda of the Government sessions;

11) represent the Government of Belarus in relations with other state bodies, enterprises, institutions and organizations in Belarus and abroad in the prescribed manner;

12) negotiate and sign international treaties on behalf of the Republic of Belarus within the scope of powers conferred on him;

13) upon Government decision, administer the affairs of consultative, advisory and other auxiliary bodies established by the Cabinet of Belarus;

14) exercise other powers as provided for in this Law and other laws of Belarus.

Article 52. Responsibility of members of the Government of the Republic of Belarus

1. Members of the Government of the Republic of Belarus shall be jointly responsible for the results of the activities of the Government as a collegial body of executive power.

2. Members of the Government of the Republic of Belarus shall be personally responsible for the state of affairs in the areas of public administration falling within their competence.

A member of the Government may be brought to disciplinary responsibility in the manner prescribed by this Law.

3. Members of the Government of the Republic of Belarus shall not enjoy any immunities or privileges when brought to administrative and criminal liability.

4. Members of the Government that committed corruption practices or violated the rules of conduct of **civil servants** (prohibition on using official position for personal purposes, prevention of conflict of interest, etc.) may be dismissed from office by the Soym in the manner specified in item 1 of article 22 of this Law.

Article 53. Conflict of interest

1. A member of the Government of the Republic of Belarus must not use his official position for private gain.

2. If a member of the Government finds himself in an actual or potential conflict of interest, he shall be obliged to inform the Government about this fact in writing no later than the next working day.

3. A member of the Government of the Republic of Belarus may not participate in the consideration, preparation and adoption of decisions, or exercise other powers in those instances where he has an actual or potential conflict of interest.

4. In the case of impossibility of resolving a conflict of interest involving a member of the Government in the manner provided for in item 3 of this article and his failure to eliminate the conflict of interest independently, the Prime Minister of Belarus shall submit a proposal to dismiss the aforesaid member for consideration by the Soym.

Note: the terms “actual conflict of interest”, “potential conflict of interest”, “private gain” shall be used as defined in the Law of the Republic of Belarus “On the Fight against Corruption”.

Article 54. Sessions of the Government of the Republic of Belarus

1. Government session is the organizational form of activity of the Government of the Republic of Belarus.

2. Government sessions shall be convened by the Prime Minister of the Republic of Belarus.

3. Government session shall be deemed duly constituted on the condition that it is attended by more than half of the official composition of the Government of the Republic of Belarus.

4. If the minister is unable to attend the session of the Government of Belarus, the deputy minister shall take part in the session in a consultative capacity.

5. The Government of the Republic of Belarus shall specify other persons having the right to participate in Government sessions in a consultative capacity on the proposals of members of the Government.

6. Government sessions shall be chaired by the Prime Minister or, in the case of his absence, by the First Deputy Prime Minister or Deputy Prime Minister acting on the authority of the Prime Minister in accordance with the distribution of powers established by the Government of Belarus.

7. The agenda of the Government session shall be approved by the Government on the proposal of the Prime Minister of the Republic of Belarus.

8. Government sessions shall be taken down in shorthand. The decisions made at the Government sessions shall be formalized in a protocol, which is an official document.

9. Shorthand report of Government session is a confidential internal working document, which is used to prepare minutes of the session. Copies of shorthand reports of Government sessions shall be provided to the Soym, the President, and members of the Government upon their request.

10. Minutes of Government sessions shall be provided to members of the Government, the Soym, and the President of the Republic of Belarus. Minutes of Government sessions may also be provided to other entities in compliance with the Rules of Procedure of the Government of the Republic of Belarus.

Article 55. Secretariat of the Government of the Republic of Belarus

1. The Secretariat of the Government of the Republic of Belarus shall provide organizational, expert, analytical, legal, informational and logistical support for the activities of the Government of Belarus.

2. The Secretariat of the Government of the Republic of Belarus shall ensure the preparation and conduct of sessions of the Government and the performance of activities of the Prime Minister, First Deputy Prime Minister and Deputy Prime Ministers of the Republic of Belarus.

The Secretariat of the Government shall exercise control over executive authorities to ensure that the bills and draft acts of the Government of the Republic of Belarus as well

as other documents are prepared and submitted for consideration by the Government in a timely manner.

The Secretariat of the Government shall facilitate the process of consideration and responding to requests received by the Government in accordance with the legislation of the Republic of Belarus.

3. The Secretariat of the Government shall be headed by the State Secretary of the Government of the Republic of Belarus.

4. The State Secretary of the Government of Belarus shall be backed by first deputy secretary and deputy secretaries that are appointed and dismissed on the proposal of the Commission on High Corps of Civil Service based on the results of a competition in accordance with the legislation on civil service.

5. Civil servants and other employees of the Secretariat of the Government shall be appointed and dismissed by the State Secretary of the Government in the manner prescribed by the legislation on civil service, with the exception of those that are appointed and dismissed by the Government of the Republic of Belarus.

6. The rights, duties and responsibilities of civil servants of the Secretariat of the Government of the Republic of Belarus shall be established by the legislation on civil service.

7. Termination of powers of the Government of the Republic of Belarus shall not be cause for the dismissal of civil servants and other employees of the Secretariat of the Government, with the exception of civil servants and other employees of the Office of the Prime Minister, patronage services of the First Deputy Prime Minister and Deputy Prime Ministers of the Republic of Belarus.

8. The patronage services of the First Deputy Prime Minister and Deputy Prime Ministers shall be established as part of the Secretariat of the Government of the Republic of Belarus. Civil servants and other employees of patronage services shall be appointed and dismissed by the State Secretary of the Government of the Republic of Belarus on the proposal of the First Deputy Prime Minister, Deputy Prime Ministers, and the ministers other than heads of ministries, correspondingly.

9. The organizational structure of the Secretariat of the Government shall be approved by the Government of the Republic of Belarus on the proposal of the State Secretary of the Government.

10. The Secretariat of the Government of the Republic of Belarus is a legal entity acting on the basis of this Law and the Regulation of the Secretariat of the Government, which shall be approved by the Government of the Republic of Belarus.

11. The budget estimate and staffing table of the Secretariat of the Government shall be approved by the State Secretary of the Government in coordination with the central executive body responsible for shaping the state budget policy within the limits of state budget funds allocated to support the activities of the Secretariat of the Government of the Republic of Belarus.

Article 56. Consultative, advisory and other auxiliary bodies established by the Government of the Republic of Belarus

1. The Government shall establish the National Council for the Development of Science and Technology of the Republic of Belarus, temporary consultative, advisory and other auxiliary bodies to facilitate the exercise of its powers.

Special aspects of the activities of the National Council for the Development of Science and Technology of the Republic of Belarus shall be determined by the Law of Belarus "On Scientific and Scientific-Technical Activities".

2. Civil servants, members of the Soym, scientists and other experts may be involved in the activities of consultative, advisory and other auxiliary bodies established by the Government of the Republic of Belarus upon their consent.

3. The Government of the Republic of Belarus shall determine the tasks, composition and organization of activities of consultative, advisory and other auxiliary bodies.

4. The funds that were allocated to support the activities of the Secretariat of the Government of Belarus or relevant central executive authorities may be used to pay for the work of experts involved in the activities of consultative, advisory and other auxiliary bodies.

Article 57. Acts of the Government of the Republic of Belarus

1. In exercising its powers, the Government shall issue acts in the form of resolutions and edicts in accordance with the Constitution and the laws of the Republic of Belarus.

2. Government resolutions are normative acts that have a binding effect on the entire territory of the Republic of Belarus.

3. The Government of the Republic of Belarus shall issue edicts to deal with organizational, administrative and other urgent matters.

Government edicts are one-time individual acts that lose effect upon implementation thereof.

4. Acts of the Government shall be adopted exclusively at the Government sessions.

Acts of the Government shall be signed by the Prime Minister or a person acting as Prime Minister pro tempore and presiding at the session of the Government of the Republic of Belarus.

5. Resolution of the Government of the Republic of Belarus shall be signed by the Prime Minister and countersigned by the ministers that are obliged to implement it.

Government Resolution comes into force from the moment of its official publication, unless otherwise provided by the Resolution itself, but in any case not earlier than the day of its official publication.

6. In cases provided by law, the decision of the Government of the Republic of Belarus may be made in the form of official instruction.

In such a case, official instruction shall be formalized in a separate document that must be signed by the Prime Minister of the Republic of Belarus.

Article 58. Preparation of draft acts of the Government of the Republic of Belarus

1. Members of the Government of the Republic of Belarus shall have the right of initiative in adopting the acts of the Government of the Republic of Belarus.

2. Draft acts of the Government of the Republic of Belarus shall be prepared by the ministries.

3. Ministries shall submit draft acts for consideration by the Government of the Republic of Belarus.

... shall be submitted by the Prime Minister and his deputies for consideration by the Government of the Republic of Belarus in the prescribed manner (part of this sentence is missing).

4. Draft acts submitted for consideration by the Government of the Republic of Belarus shall be registered by the Secretariat of the Government of the Republic of Belarus. Draft resolutions of the Government shall be published on the official website of the Government in the manner prescribed by the Government of the Republic of Belarus.

5. Members of the Soym, scientists and other experts may be involved in the process of preparation of draft resolutions of the Government of the Republic of Belarus upon their consent.

6. Publicly significant draft resolutions of the Government that determine the rights and duties of citizens of Belarus are subject to advance publication in the manner established by the Government of the Republic of Belarus.

Article 59. Adoption of acts of the Government of the Republic of Belarus

1. Resolutions and edicts of the Government of the Republic of Belarus shall be adopted at the Government sessions by a majority vote of official composition of the Government as specified in article 10 of this Law. If the draft act wins the support of exactly half of the Government members, including the Prime Minister, the decision shall be deemed adopted.

2. Upon signature of Government act by the Prime Minister and countersignature thereof by the ministers responsible for implementation, any subsequent amendments to the text of Government act, including the correction of stylistic and spelling errors, shall be made in the manner specified in item 1 of this article.

Article 60. Entry into force of an act of the Government of the Republic of Belarus

1. Resolutions of the Government of the Republic of Belarus, with the exception of those that contain limited-access information, come into force from the moment of their official publication, unless otherwise provided by the resolutions themselves, but in any case not earlier than the day of their official publication.

In cases provided by law, Government resolutions or particular provisions thereof containing limited-access information are exempt from publication and enter into force from the moment of disclosure to the persons responsible for implementation thereof in the manner prescribed by law, unless a different date of entry into force is specified in these resolutions.

2. Edicts of the Government of the Republic of Belarus enter into force from the day on which they are adopted, unless a different date of entry into force is specified in these edicts.

3. Resolutions of the Government of the Republic of Belarus shall be entered into the Unified State Register of Legal Acts of the Republic of Belarus.

4. The official publication of resolutions of the Government of the Republic of Belarus shall be published in the official printed sources and mass print media established by the legislation. In addition, resolutions of the Government shall be published on the official website of the Government of the Republic of Belarus.

Chapter X. SOCIAL AND MATERIAL SECURITY OF MEMBERS OF THE GOVERNMENT OF THE REPUBLIC OF BELARUS

Article 61. Terms of remuneration and other benefits for the Prime Minister of the Republic of Belarus

Conditions of remuneration, medical, transport and other support provided to the Prime Minister of the Republic of Belarus for the duration of his term of office shall be determined by the Government of the Republic of Belarus.

Article 62. Terms of remuneration and annual leave entitlements for members of the Government of the Republic of Belarus

1. Conditions of remuneration for members of the Government of the Republic of Belarus shall be determined in accordance with the legislation.

2. Members of the Government of the Republic of Belarus shall be entitled to 30 calendar days of annual leave.

Article 63. Material and housing support for members of the Government of the Republic of Belarus

1. Each member of the Government of the Republic of Belarus shall be provided with an official vehicle.

2. Members of the Government without housing shall be provided with official housing for the duration of their term of office.

Official residential premises, which are designed to accommodate members of the Government, shall be owned by the state.

Withdrawal of residential premises, which are designed to accommodate members of the Government, from official housing stock shall be prohibited for the duration of their term of office.

3. Members of the Government shall have the right to an emergency purchase of travel tickets for all types of intercity transport within the territory of Belarus.

4. Each member of the Government shall be provided with a diplomatic passport of the Republic of Belarus for the duration of his term of office in accordance with the established procedure.

5. In the event of the death of a member of the Government, assistance with funeral costs shall be provided in the amount and manner specified by the Government of the Republic of Belarus.

Article 64. Guarantee of labor and employment rights of members of the Government of the Republic of Belarus

The term of office of a member of the Government of the Republic of Belarus shall be counted in the total length of service, continuous (uninterrupted) length of service, length of civil service, length of service in the specialty, length of service that gives the right to prorated pay increase, one-off seniority bonus (bonus for long service in the specialty at a given enterprise), prorated increase for length of service, and payment of remuneration on the basis of performance.

Article 65. Pension benefits for ex-members of the Government of the Republic of Belarus

Pension benefits shall be provided to ex-members of the Government of the Republic of Belarus on general basis in accordance with the laws of Belarus on civil service and on provision of pensions.

Chapter XI. TRANSITIONAL AND FINAL PROVISIONS

Article 66. Entry into force of this Law

1. This Law shall enter into force on the day following its publication.

2. The Law of the Republic of Belarus dated July 23, 2008, “On the Council of Ministers of the Republic of Belarus” with subsequent amendments and additions shall be deemed null and void.

Article 67. Harmonization of legislative acts of the Republic of Belarus with this Law

1. The provisions of legislative acts shall be applied insofar as they do not conflict with the Constitution of the Republic of Belarus and this Law until they are brought into compliance with this Law.

2. Within three months of the date of publication of this Law, the Government of the Republic of Belarus shall:

1) bring its legal acts into compliance with the Constitution of the Republic of Belarus and this Law;

2) adopt new legal acts arising from this Law;

3) ensure that the ministries and other central executive authorities review their legal acts and bring them into compliance with the Constitution of the Republic of Belarus and this Law.